

MMP - A Modest Proposal

A perhaps not so minor a constitutional change

The strength of MMP is that it provides representation for more platforms than just the two major parties.

The weakness of MMP is that the usual outcome has no platform survive the election.

Coalitions form, platforms are compromised, and we end up with an electorate in which no voter at all can ever see their vote translated into the promised action. Their chosen candidate or party cannot keep their promises. A most unsatisfactory state of affairs.

This is due to the now conventional view that no party can govern reliably unless they have a guaranteed majority in the house at all times.

But this approach goes diametrically against the principle of MMP, which is to avoid this sort of "winner takes all" approach to our legislation. An approach that has evolved over the decades since MMP was introduced, as post-election negotiations became customary and the jockeying for positions virtually ensured that no platform would survive as the electorate had been 'promised'.

And so our politicians are no longer trusted, precisely because a weakness in our use of MMP has made it so. That's the problem that must be solved.

Here is the solution, simply put (and yes it will need more explanation) "table voting". The negotiations, compromises and alliances will take place before the election, published, visible to all in a published table, in sufficient time for the voters to consider and debate before going to the ballot box. In the house, each party can only vote exactly as they promised, without any coalition constraint. For each motion that is debated, they are counted as Support, Oppose, Abstain or Float exactly as they promised before the election. The voters will get exactly the behaviours that they elected. This will effectively turn the party votes in the house into a lookup table called by the whips when the question is put, but if we want certainty, politicians keeping their promises, that is the consequence, and a most desirable one, compared with the current confusion and reverses.

Let us be clear, the intention of these changes is that the electorate knows, absolutely what their vote will mean for the full, three-year term. A by-election must not change that position, as it would invalidate the intention of the nation of voters. The party may nominate a replacement electorate representative for constituent service, but there is no need for a vote - that die was cast at the commencement of the term. This is another significant change from current practice, but absolutely required to preserve the integrity of this proposed general election process.

It may seem unduly complicated, but no more so than now, because the complication is visible rather than hidden. Here is the detail, ready for the constitutional lawyers to knock into shape.

The underlying principle is that passage of a motion only requires a simple majority of the votes, regardless of how many members abstain. This is what makes minority government possible. Coalitions are not at all necessary. The Governor General already appoints as PM whoever demonstrates, as a minimum, that they have support for confidence-and-supply.

Here's the paradox, such PMs may be Independent (as a party with one candidate). And nothing in their platform may be achieved, but the parliament may yet be an effective instrument of government. Our constitutional law is an interesting beast.

Note that it is general practice for party policy to be set by a committee that rarely includes the candidates. The means that even while the house is in session, the policy committees may be hard at work preparing the forthcoming platform. We start by using that information in the following way.

In the three years leading up to an election, the policy committees of all the parties effectively pre-form, in the public domain, coalitions of policy, not of parties. For example: Party A Supports GST. Opposes increasing Super Age, Abstains from 3-strikes legislation and Floats on Increasing drinking age. S; O; A; F. These terms matter. The party platform, published, is a table, a list of policies, in as much detail as there might be matters they would want discussed in the next parliamentary term. As each party discloses their list, the other parties augment their lists to encompass, and disclose their views on, *all* the proposed matters. The electorate can see this happening because the lists will be held and published by a Platform Commission. We can envisage a table with one line for each matter, and one column for each party, with the policy (S O A or F) in the cells. Sortable columns would make comparisons easier, and they would be easier still given that the electorate would have up to three years to see the negotiations play out. A party *must* have a published position on *every* item in the list.

We can also expect considerable polling, on issues rather than parties, as the policies are formed, because it will be the most favoured list of policies that will lead to election success. This also carries the consequence that the public may in their ignorance strongly favour some decidedly unhelpful policy. We might hope that the opponents to the policy would mount an attractive but careful education campaign to counter that attitude. The Platform Commission would also hold and publish the parties' negotiated key terms and consequences of each matter. We could expect these to initially be fluid and strongly contested, but to become settled over time. As a circuit-breaker it could be a requirement that the key points be agreed between *all* parties if they wish to have that matter included in the list, otherwise the matter doesn't get to parliament at all, because every matter must appear on every party list. This sequence would be a sort of three year public parliament, visible to the people, and best of all, the public gets a say, matter by matter, on exactly what their vote will do when the 'question is put' for a matter on their selected platform. In practice, the 'vote' of a member will be irrelevant. The count will be of the published positions counted as one for each elected member, whether present at the time, or not.

Another hole to be fixed: the order of legislation. Policies can be avoided by putting the legislation so far down the order list that it never sees the light of day. A simple solution is to rank the tabled matters by the number of "S" tabulated entries counted across all seats. Then the most electorally 'popular' matters would be dealt with first, which accords well with giving the electorate much more control and certainty. And if issues with low support ("S" votes) don't make it to the floor with the term, that too represents the public view.

Parties would be free to produce their own publications with their reasons for their positions, their particular qualities (as if that would matter under this proposal) and other matters they wished.

How the 'table' would work on each matter, when debated in the house:

"S" means that the party *must* support, vote affirmative for the motion.

"O" the party *must* oppose it as something they are firmly against.

"A" *must* abstain because they do not wish to influence the outcome either way.

"F" the party members are free to vote, or not, or even free to do deals.

The result is that successful votes for the party will provide certainty as to how those electoral votes translate into party votes within the house, giving real meaning to the influence of the electorate.

How would this work within the parliament. There are two cases.

Absolute majority. Given their published policy list, every matter on their list *must* be legislated as they had announced it. Certainty in government. The exact nature of the legislation would form the issues for debate, but the essence may not differ from the platform position.

Minorities only. The clear 'winner' may form government, but that would actually be a meaningless position. Every elected member *must* be counted as a vote in accordance with their platform. Details debated, the essence preserved as prescribed.

Now the question of Ministers. In Sweden it is not required that they be members of the house, indeed if elected and appointed to a Ministry, they must withdraw from the house, where they are replaced by an equivalent representative, to keep the numbers up. I would suggest a similar arrangement here. That a successful party representative proposed to be the Minister of a department, would also be a skilled, experienced manager or director of that particular discipline, to CEO or production manager level, with change-management ability too, is beyond all probability. In the proposed electoral system, each party's policy is pre-determined so the Minister is not required to design policy, only to run production - making the necessary changes and keeping the department running efficiently and happily.

So, in summary: MMP should in my view require minority government, with coalitions forbidden. Minor parties all on the cross benches. Each party should be absolutely required to vote their promises. Any party to put up Acts. That way (I posit) we the people would get the promises or nothing (which in many cases might be an improvement). There could be no 'broken promises' as the house vote would be simply table driven. We might see more cooperation pre-election as 'they' jockey to get cross-party agreement on key matters, and hence real promises for real outcomes that we the people have some say in, at the ballot box. What is a matter? An Act, a clause, a policy area? Probably an Act, but this needs further consideration. Regardless, I postulate for pre-election negotiation between parties on what their policies will be and how legislated, and what matters they agree on and with whom. Then the voters will know that their vote will deliver what they think they want from their choice of candidate or list party if the matter gets the numbers in the house, and that their choice of party will not lead to the party voting against their promises. Or that they will abstain. It need not be a deadlock. But unless there are sufficient numbers 'pre-declared' or at least not opposed, the bill will not get up. And nor should it. Of course there needs to be a 'genuine emergency' provision which may present an exercise for the drafters of the enabling legislation. At present, parties announce (not entirely reliably) with whom they will form coalitions, so I propose merely increasing the granularity and ensuring the choices of the electorate, for the running of the next three years, are automatically enforced.

How does this proposal sit, internationally?

The Swedish system, by means of a number of mechanisms, readily supports minority government. In addition, Ministers need not be elected. Indeed while ever appointed as a Minister, they cannot vote - a substitute takes their place in the chamber and votes in their stead. Having been elected does not necessarily confer expertise or skill at dealing with the issues of managing a ministry.

Switzerland allows referenda on proposed legislation. So the people decide the outcome of some issues, one by one. This differs from this proposal for 'table voting' in two particular ways: the considerable overhead of regular referenda is avoided for government and for electorate; and this proposal is less subtle as voters get to choose only between blocks of policies rather than the policies individually.

But I dream on.

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